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4 January 1954

MEMORANDUM FOR: Inspector General

SUBJECT : Frank R. Olson

1. I have been informed by Dr. Leshbrook that Mrs. Olson has been notified of a favorable ruling on compensation by the Bureau of Employees Compensation. I have forwarded the final papers to the Bureau and, consequently, believe this case is closed so far as the General Counsel's Office is concerned. It is possible that we may be called on to help in connection with the Veterans Administration on the lapsed life insurance policy, but I trust any such help will be in the form of advice rather than action.

2. My comments on this case are fairly simple. There is no dispute as to the facts. All agree on how the experiment was carried out and on the succeeding events as they relate to Dr. Olson. The implications are in dispute. It is, of course, perfectly possible that the suicide grew out of a pre-existing state which was not affected by the experiment. However, we have taken the position officially that the experiment at least "triggered" the suicide, and, as all the facts tend to support this conclusion, we should accept it as final. In any case this has been the position from the start of Dr. Gottlieb and Dr. Leshbrook, yet these two, supported by Dr. Gibbons, are insistent that it is practically impossible for this drug to have any harmful after effects. These two positions are, to me, completely inconsistent.

3. If the drug "triggered" the suicide, ergo the trigger itself is inherently dangerous under certain circumstances. Therefore, I am not happy with what seems to me a very casual attitude on the part of TSS representatives to the way this experiment was conducted and to their remarks that this is just one of the risks running with scientific experimentation. I do not eliminate the need for taking risks, but I do believe, especially when human health or life is at stake, that at least

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the prudent reasonable measures which can be taken to minimize the risk must be taken and failure to do so is culpable negligence. The actions of the various individuals concerned when the effects of the experiment on Dr. Olson became manifest also revealed the failure to observe normal and reasonable precautions. The offices of the Agency charged with the responsibility for matters of this sort, particularly the Security Office and the Medical Staff, were not informed, although we were informed that the TSS representatives were deeply concerned over the security aspects and actually referred Dr. Olson to Dr. Abramson for medical treatment. As a result a death occurred which might have been prevented, and the Agency as a whole, and particularly the Director, were caught completely by surprise in a most embarrassing manner.

Lawrence R. Houston

LAWRENCE R. HOUSTON
General Counsel

1 Att - Complete background
material on subject

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